

# Data Processing Agreement

**DocuSeal LLC**

*Last updated August 28, 2026*

This Data Processing Agreement (“Agreement”) forms part of, and is incorporated into, the Terms of Service (“Principal Agreement”) between:

Company name: Start academy  
Address: 12 Avenue des camélias  
Notices email: formation@start-academy.fr  
(the “Company”)

and

**DocuSeal LLC**  
332 S Michigan Ave, Suite 121 #5896  
Chicago, IL 60604, United States of America  
Notices email: privacy@docuseal.com  
(the “Processor”)  
  
(together as the “Parties”)

This Agreement applies to the Services provided through docuseal.eu and shall become legally binding upon the Company entering into the Principal Agreement or upon execution of this Agreement.

## WHEREAS

(A) The Company acts as a Controller or, where it Processes Personal Data on behalf of its own customers, as a Processor.

(B) The Company wishes to subcontract certain Services, which imply the processing of personal data, to the Processor.

(C) The Parties seek to implement a data processing agreement that complies with applicable Data Protection Laws (as defined below), including Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), the UK GDPR and the FADP.

(D) The Parties wish to lay down their rights and obligations.

IT IS AGREED AS FOLLOWS:

## 1. Definitions and Interpretation

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1.1 Unless otherwise defined herein, capitalized terms and expressions used in this Agreement shall have the following meaning:

1.1.1 “**Account Data**” means Personal Data relating to the Company’s relationship with the Processor, including the names and contact details of the Company’s users and administrators, and billing information;

1.1.2 “**Agreement**” means this Data Processing Agreement and all Annexes and Schedules;

1.1.3 “**Company Personal Data**” means any Personal Data Processed by the Processor or a Subprocessor on behalf of the Company pursuant to or in connection with the Principal Agreement, excluding Account Data and Usage Data;

1.1.4 “**Data Protection Laws**” means EU Data Protection Laws, UK Data Protection Laws, the FADP and, to the extent applicable, the data protection or privacy laws of any other country;

1.1.5 “**Data Subject**” means an identified or identifiable natural person to whom Personal Data relates (or equivalent term under Data Protection Laws);

1.1.6 “**Data Transfer**” means any transfer, disclosure or remote access to Company Personal Data that is restricted under Data Protection Laws, including a transfer from the EEA, the United Kingdom or Switzerland to a country or recipient not recognized as providing an adequate level of protection;

1.1.7 “**EEA**” means the European Economic Area;

1.1.8 “**EU Data Protection Laws**” means the GDPR, Directive 2002/58/EC as implemented by EU Member States, and all laws implementing or supplementing the GDPR, in each case as amended, replaced or superseded from time to time;

1.1.9 “**FADP**” means the Swiss Federal Act on Data Protection of September 25, 2020 and its implementing ordinances, as amended from time to time;

1.1.10 “**GDPR**” means Regulation (EU) 2016/679;

1.1.11 “**Services**” means the DocuSeal electronic signature and document workflow software-as-a-service made available at docuseal.eu, its application programming interface, and related support services provided by the Processor under the Principal Agreement;

1.1.12 “**Standard Contractual Clauses**” or “**SCCs**” means the standard contractual clauses for the transfer of personal data to third countries adopted by the European Commission under Commission Implementing Decision (EU) 2021/914 of June 4, 2021, as incorporated and completed in Schedule 1;

1.1.13 “**Subprocessor**” means any person appointed by or on behalf of Processor to process Personal Data on behalf of the Company in connection with the Agreement, excluding third-

party services that the Company connects to the Services under its own agreement with the relevant third party (such as payment processors, email delivery providers, webhook endpoints and API clients);

1.1.14 “**UK Addendum**” means the International Data Transfer Addendum to the European Commission Standard Contractual Clauses issued by the UK Information Commissioner and laid before Parliament in accordance with section 119A of the Data Protection Act 2018 on February 2, 2022, as amended or replaced from time to time;

1.1.15 “**UK Data Protection Laws**” means the UK GDPR and the Data Protection Act 2018;

1.1.16 “**UK GDPR**” means Regulation (EU) 2016/679 as it forms part of the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018 and as amended by the Data Protection, Privacy and Electronic Communications (Amendments etc.) (EU Exit) Regulations 2019; and

1.1.17 “**Usage Data**” means service usage, log and diagnostic data generated by the Processor in operating the Services, including data used to maintain the performance of the Services, to secure the Services and to investigate and prevent abuse.

1.2 The terms, “Commission”, “Controller”, “Member State”, “Personal Data”, “Personal Data Breach”, “Processing”, “Processor” and “Supervisory Authority” shall have the same meaning as in the GDPR, and their cognate terms shall be construed accordingly.

## 2. Processing of Company Personal Data

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2.1 Processor shall:

2.1.1 comply with all applicable Data Protection Laws in the Processing of Company Personal Data;

2.1.2 not Process Company Personal Data other than on the Company’s documented instructions, including with regard to Data Transfers, unless required to do so by applicable law, in which case Processor shall inform the Company of that legal requirement before Processing, unless that law prohibits such information on important grounds of public interest; and

2.1.3 immediately inform the Company if, in its opinion, an instruction infringes applicable Data Protection Laws, provided that the Processor is not obliged to undertake additional work or screening to determine whether the Company’s instructions are compliant.

2.2 The Company instructs Processor to process Company Personal Data. Annex I sets out the subject matter and duration of the Processing, the nature and purpose of the Processing, the types of Personal Data and the categories of Data Subjects. The obligations and rights of the Company are as set out in this Agreement and the Principal Agreement.

2.3 The Company is responsible for the lawfulness of its instructions and for providing all notices, obtaining all consents and establishing all legal bases required for the Company Personal Data that the Company or its users submit to the Services. The Company is responsible for the accuracy, quality and legality of the Company Personal Data it provides to the Processor and for the means by

which it acquired that Company Personal Data. The Company shall not submit to the Services any Company Personal Data that it is not lawfully entitled to process or that is inappropriate for the nature of the Services, acknowledges the statement regarding sensitive data in Annex I, and shall indemnify and hold harmless the Processor against all claims, losses and costs arising from any breach of this section 2.3 or from the Processor's compliance with the Company's instructions.

2.4 The Company additionally instructs the Processor to process Company Personal Data as reasonably necessary to provide, secure, support and maintain the Services, to generate and use aggregated, de-identified or anonymized information that is not Personal Data, and, where the Processor reasonably believes the Services are being used unlawfully, to disclose to competent authorities the Company Personal Data strictly necessary to report that use.

2.5 The Parties acknowledge that DocuSeal LLC, notwithstanding its designation as Processor under this Agreement, acts as an independent controller (and not as a processor or joint controller) in respect of Account Data and Usage Data, which it Processes to manage its relationship with the Company, for billing and payment processing, to provide, secure, maintain and improve the Services, to prevent fraud and abuse, and to comply with applicable law, in accordance with its privacy policy available at <https://www.docuseal.com/privacy>.

2.6 Where the Company or its users connect the Services to a third-party service under the Company's own agreement with that third party, the Company instructs the Processor to transmit the relevant Company Personal Data to that third party. Such third parties are not Subprocessors; the Company is responsible for their compliance with Data Protection Laws and for any resulting Data Transfer, and section 11.5 does not apply to Company Personal Data so transmitted.

### **3. Processor Personnel**

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3.1 Processor shall ensure that personnel authorized to Process Company Personal Data are bound by written or statutory obligations of confidentiality and have access to Company Personal Data only to the extent necessary to provide the Services.

### **4. Security**

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4.1 Taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of Processing as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons, Processor shall in relation to the Company Personal Data implement appropriate technical and organizational measures to ensure a level of security appropriate to that risk, including, as appropriate, the measures referred to in Article 32(1) of the GDPR. The Processor shall maintain technical and organizational measures materially consistent with those described in Annex II.

4.2 In assessing the appropriate level of security, Processor shall take account in particular of the risks that are presented by Processing, in particular from a Personal Data Breach.

4.3 The Processor may update the measures set out in Annex II from time to time, provided that such updates do not materially decrease the overall level of protection for Company Personal Data during the term of the Principal Agreement.

## 5. Subprocessing

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5.1 The Parties agree that Company gives Processor general authorization to engage Subprocessors to process Company Personal Data on Company's behalf.

5.2 The Company authorizes the Processor to appoint (and to disclose Company Personal Data to) the Subprocessors listed at <https://www.docuseal.com/privacy/gdpr#subprocessors>, or a successor location identified by the Processor (the "Subprocessor Page"), as further described in Annex III. The Subprocessor Page identifies each Subprocessor and, where practicable, its location and the nature of its processing.

5.3 Processor shall enter into a written agreement with each Subprocessor imposing data protection obligations substantially similar to, and no less protective than, those set out in this Agreement, sufficient to meet Article 28(4) of the GDPR, to the extent applicable to the nature of the services provided by that Subprocessor, and shall remain fully liable to the Company for the performance of each Subprocessor's obligations.

5.4 Processor shall inform the Company of any intended addition or replacement of a Subprocessor at least 14 days in advance, by email to the Company's account administrator or subscribed contact and/or by notice through the Services. The Company may object to the change on reasonable data protection grounds within that period, in which case the Parties shall work in good faith to resolve the objection; if the objection cannot be resolved, the Company may terminate the affected Services, in which case the Processor will refund any prepaid fees for the unexpired portion of the terminated Services. If the Company does not object within the notice period, the new Subprocessor shall be deemed authorized.

## 6. Data Subject Rights

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6.1 Taking into account the nature of the Processing, Processor shall assist the Company by implementing appropriate technical and organizational measures, insofar as this is possible, for the fulfillment of the Company's obligations, as reasonably understood by the Company, to respond to requests to exercise Data Subject rights under the Data Protection Laws.

6.2 Processor shall:

6.2.1 promptly notify Company if it receives a request from a Data Subject under any Data Protection Law in respect of Company Personal Data; and

6.2.2 ensure that it does not respond to that request except on the documented instructions of Company or as required by applicable law, in which case Processor shall, to the extent permitted by applicable law, inform Company of that legal requirement before responding to the request. The Processor may advise a Data Subject who contacts it directly to submit the

request to the Company, and may confirm to a requesting party that a request relates to the Company.

6.3 To the extent that assistance under sections 6, 8 or 10 is not included in the Services or available through the self-service functionality of the Services, the Processor may charge a reasonable fee for such assistance, except where the assistance is required as a result of the Processor's own acts or omissions, in which case it shall be provided at the Processor's expense.

## **7. Personal Data Breach**

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7.1 Processor shall notify Company without undue delay upon Processor becoming aware of a Personal Data Breach affecting Company Personal Data, providing Company with sufficient information to allow the Company to meet any obligations to report the Personal Data Breach to Supervisory Authorities or to inform Data Subjects under the Data Protection Laws. Such information shall include, to the extent known: the nature of the Personal Data Breach; the categories and approximate number of Data Subjects and records concerned; the likely consequences of the Personal Data Breach; and the measures taken or proposed to address it.

7.2 Processor shall reasonably cooperate with the Company and take such steps as Processor reasonably considers necessary to assist in the investigation, mitigation and remediation of each such Personal Data Breach, taking into account the nature of the Processing and the information available to Processor.

7.3 The Processor's notification of, or response to, a Personal Data Breach under this section 7 is not an acknowledgment by the Processor of any fault or liability in respect of that Personal Data Breach.

7.4 Where a Personal Data Breach is caused by the acts or omissions of the Company or its users, only section 7.1 applies, and any assistance under section 7.2 will be provided at the Company's request and expense.

## **8. Data Protection Impact Assessment and Prior Consultation**

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8.1 Where required by Article 35 or 36 of the GDPR or equivalent provisions of other Data Protection Laws, and where the Company does not otherwise have access to the relevant information, Processor shall provide reasonable assistance to the Company with data protection impact assessments and prior consultations with Supervisory Authorities, in each case solely in relation to the Processing of Company Personal Data by the Processor or its Subprocessors and taking into account the nature of the Processing and the information available to the Processor.

## **9. Deletion or Return of Company Personal Data**

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9.1 Within 60 days after the earlier of termination or expiry of the Principal Agreement, closure of the Company's account, or receipt of the Company's written deletion request, the Processor shall delete

Company Personal Data, except to the extent that applicable law requires its retention or it is held in routine backups, logs or security records that are overwritten in the ordinary course, in which case it remains subject to the confidentiality and security obligations of this Agreement until deleted. The Processor may also retain Company Personal Data to the extent reasonably necessary to establish, exercise or defend legal claims or to prevent fraud or abuse of the Services, isolated and Processed only for those purposes.

9.2 Before deletion, the Company may export Company Personal Data, including signed documents and audit logs, through the Services or the application programming interface in a commonly used, machine-readable format. The Processor satisfies any obligation to return Company Personal Data by making such export functionality available. On the Company's written request, the Processor will confirm deletion, which may take the form of an email from the Processor's privacy contact.

## 10. Audit Rights

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10.1 Subject to this section 10, Processor shall make available to the Company on request all information necessary to demonstrate compliance with this Agreement, and shall allow for and contribute to audits, including inspections, by the Company or an auditor mandated by the Company in relation to the Processing of the Company Personal Data by the Processor or its Subprocessors.

10.2 The Company shall conduct any audit on reasonable prior written notice, during normal business hours, and in a manner that does not unreasonably interfere with the Processor's operations, subject to reasonable confidentiality and security requirements. The Processor may satisfy an audit request by providing recent third-party audit reports, certifications, security documentation or responses to questionnaires. An on-site inspection may be requested only where such materials are not reasonably sufficient to demonstrate compliance under Data Protection Laws or a Supervisory Authority requires it, and shall be conducted by the Company or an independent auditor mandated by the Company that is bound by obligations of confidentiality and is not a competitor of the Processor. The Company shall be responsible for the costs of any audit or inspection it requests.

10.3 Audits shall be conducted no more than once in any 12-month period, unless required by a Supervisory Authority, and shall be limited to information relevant to the Processing of Company Personal Data. The Company shall reimburse the Processor's reasonable costs for time expended on any on-site audit or inspection. Where the Standard Contractual Clauses apply, the Parties agree that the audits and inspections described in Clause 8.9 of the Standard Contractual Clauses shall be carried out in accordance with this section 10.

## 11. Data Transfers and Data Residency

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11.1 **Processing locations.** The Company acknowledges that the Processor is established in the United States and that Company Personal Data may be accessed by the Processor from, and Processed by Subprocessors located in, countries outside the EEA, the United Kingdom and Switzerland, in each case as identified on the Subprocessor Page referred to in Annex III, and the

Company authorizes such Data Transfers subject to section 11.2. The Processor shall not make a Data Transfer other than in compliance with Data Protection Laws.

11.2 Data Transfers from the Company to the Processor are made under the Standard Contractual Clauses (Module Two or, where the Company acts as a processor on behalf of its own customers, Module Three), the UK Addendum and the Swiss adaptations, in each case as incorporated and completed in Schedule 1. Onward transfers by the Processor to Subprocessors are made in accordance with Clauses 8.8 and 9 of the Standard Contractual Clauses and section 5. For Subprocessors located outside the EEA, the United Kingdom and Switzerland, the Processor relies on an adequacy decision covering the Subprocessor (including, for Subprocessors in the United States, certification under the EU-U.S. Data Privacy Framework and its UK and Swiss extensions) or, where no adequacy decision applies, on the Standard Contractual Clauses or another valid transfer mechanism under Data Protection Laws, together with any supplementary measures required under section 11.3. Annexes I, II and III to this Agreement serve as the corresponding Annexes to the Standard Contractual Clauses.

11.3 The Processor shall, taking into account the nature of the Processing and the information available to it, provide the Company with information reasonably required for transfer impact assessments and implement supplementary measures reasonably necessary for a Data Transfer where required by Data Protection Laws. If the Processor receives a legally binding request from a public authority for access to Company Personal Data, it shall, unless prohibited by law, promptly notify the Company and, where possible, redirect the authority to request the data directly from the Company. The Processor will not voluntarily disclose Company Personal Data to a public authority in the absence of a valid and binding legal requirement, except that it may report unlawful use of the Services to competent authorities in accordance with section 2.4. As at the date on which this Agreement was last updated, the Processor has not received any formal legal request from a government intelligence or national security agency for access to Company Personal Data.

11.4 If the Standard Contractual Clauses or any other transfer mechanism relied upon under this Agreement is held to be invalid, or a Supervisory Authority requires transfers made pursuant to such mechanism to be suspended, the Parties shall cooperate in good faith to implement a suitable alternative transfer mechanism without undue delay.

11.5 **Data Residency.** Company Personal Data will be hosted in data centers located in the European Union, and the Processor will not intentionally store or host Company Personal Data outside the EEA, other than Processing by Subprocessors identified on the Subprocessor Page as located outside the EEA, without the Company's prior written agreement, unless required by applicable law. Remote access to Company Personal Data from outside the EEA, the United Kingdom and Switzerland is limited to what is necessary for the support, maintenance, security, incident response and service continuity of the Services, is subject to the access controls set out in Annex II, and constitutes a Data Transfer made under the safeguards in this section 11. The Subprocessors used to provide the Services, and their locations, are identified on the Subprocessor Page referred to in Annex III.

11.6 The Processor shall, where reasonably practicable, give the Company notice in accordance with section 12.2 before any material change affecting the data residency of the Services. In the event of any conflict, section 11.5 controls over the other provisions of this section 11.



## 12. General Terms

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**12.1 Confidentiality.** Each Party must keep information it receives about the other Party and its business in connection with this Agreement (“Confidential Information”) confidential and must not use or disclose that Confidential Information without the prior written consent of the other Party except to the extent that:

- (a) disclosure is required by law or a Supervisory Authority;
- (b) the relevant information is already in the public domain other than through breach of this Agreement; or
- (c) disclosure is made to the Party’s professional advisers, auditors, insurers, Subprocessors or actual or prospective acquirers or financing sources, in each case bound by obligations of confidentiality no less protective than this section 12.1.

This section 12.1 does not permit disclosure of Company Personal Data, which may be disclosed only in accordance with sections 2, 5 and 11.

**12.2 Notices.** All notices and communications given under this Agreement must be in writing and will be delivered personally, sent by post, sent by email, or provided through the Services, to the address or email address set out in the heading of this Agreement or, where none is set out, to the email address of the Company’s account administrator, or such other address as notified from time to time by the Parties.

**12.3 Precedence.** In the event of any conflict or inconsistency between the following documents, the following order of precedence applies: (a) the Standard Contractual Clauses; (b) this Agreement; and (c) the Principal Agreement.

**12.4 Liability.** Any claims brought by a Party in connection with this Agreement will be subject to the terms and conditions of the Principal Agreement, including, but not limited to, the exclusions and limitations of liability set forth therein. For the avoidance of doubt, those limitations apply in the aggregate to all claims under the Principal Agreement and this Agreement together, and to the Company and its affiliates collectively.

**12.5 Governing Law.** This Agreement is governed by the laws and choice of jurisdiction stipulated in the Principal Agreement, without prejudice to Clauses 17 and 18 of the Standard Contractual Clauses and to any rights or obligations under Data Protection Laws that cannot be varied by contract.

**12.6 Regulatory Fines.** Neither Party shall be responsible for administrative fines imposed on the other Party under Article 83 of the GDPR or equivalent provisions of Data Protection Laws in connection with that other Party’s own violation, without prejudice to section 2.3.

IN WITNESS WHEREOF, the signature blocks set forth below are provided for reference purposes only; this Agreement becomes legally binding upon the Company's acceptance of the Principal Agreement or execution of this Agreement, as set out in the preamble above.

### Company

Company Name: Start academy

Signature: 

Name: Laurent MARX

Title: CEO

Date Signed: Sept 10, 2026

### Processor

Company Name: DocuSeal LLC

Signature: 

Name: Kriti Pinto

Title: Co-Founder

Date Signed: Sept 10, 2026

## Annex I — Description of the Transfer

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### A. List of Parties

|                      |                                                                                                                                                                                                                                                                                                              |
|----------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data Exporter</b> | The Company, whose name, address and contact email are set out in this Agreement and the Principal Agreement. Role: controller (or, where the Company Processes Personal Data on behalf of its own customers, processor). Activities: use of the Services. Signature and date: as set out in this Agreement. |
| <b>Data Importer</b> | DocuSeal LLC, 332 S Michigan Ave, Suite 121 #5896, Chicago, IL 60604, United States of America. Contact: <a href="mailto:privacy@docuseal.com">privacy@docuseal.com</a> . Role: processor. Activities: provision of the Services. Signature and date: as set out in this Agreement.                          |

### B. Description of the Transfer

|                                         |                                                                                                                                                                                                                                                                                                                                                                                                                         |
|-----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Subject Matter of Processing</b>     | The provision of the DocuSeal electronic signature and document workflow Services, including document hosting, signature collection, audit-trail generation, notifications, identity verification (where enabled), API access and support.                                                                                                                                                                              |
| <b>Duration of Processing</b>           | For the term of the Principal Agreement and any period thereafter during which the Processor Processes Company Personal Data for return, deletion, backup, security or legal purposes as permitted by this Agreement.                                                                                                                                                                                                   |
| <b>Nature and Purpose of Processing</b> | Collection, hosting, storage, transmission, display, signature capture and embedding, audit-trail generation, delivery of email and SMS notifications, identity verification (where enabled), retrieval, export and deletion of documents and related data, in each case as necessary to provide, secure, support and maintain the Services in accordance with the Company's instructions and the actions of its users. |
| <b>Categories of Data Subjects</b>      | Any Data Subjects whose Personal Data is contained in the documents and form fields submitted to the Services by or on behalf of the Company, including the recipients and signatories of documents (such as the Company's employees, contractors, partners, suppliers, customers and clients) and the Company's users to the extent their Personal Data appears in documents, form fields or audit trails.             |

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|------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Categories of Personal Data</b> | Personal Data contained in the documents and form fields submitted to the Services by or on behalf of the Company, which may include any category of Personal Data determined by the Company; names and contact details of document recipients and signatories, and of the Company's users to the extent they appear in documents, form fields or audit trails; signature and initials images; where identity verification is enabled, verification results returned by the verification provider (such as name, identifier and document type); and electronic signature audit-trail data, including IP addresses, browser and device information and event timestamps. Account Data and Usage Data are Processed by the Data Importer as an independent controller under section 2.5 and are outside this Annex. |
| <b>Sensitive Data</b>              | Special categories of Personal Data (Article 9 GDPR) and data relating to criminal convictions and offenses (Article 10 GDPR) may be contained in documents and form fields where the Data Exporter chooses to include them. Applied safeguards: the measures in Annex II (including encryption in transit and at rest, access controls and logging) apply to all Company Personal Data. The Data Exporter is solely responsible for ensuring that any such data is Processed lawfully and for applying any additional restrictions required by Data Protection Laws.                                                                                                                                                                                                                                             |
| <b>Frequency of Transfer</b>       | Data is transferred on a continuous basis as required for the provision of the Services throughout the duration of the Agreement.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Retention Period</b>            | For the term of the Principal Agreement or until deleted by the Data Exporter through the Services or the API, and for up to 60 days thereafter under section 9.1. Data deleted by the Data Exporter is removed from production systems and remains only in routine backups until overwritten in the ordinary course of the Data Importer's backup rotation, subject to section 9 of this Agreement.                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Transfers to Subprocessors</b>  | To the Subprocessors identified in Annex III, for the duration of the Agreement, in accordance with section 5 of this Agreement.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

### C. Competent Supervisory Authority

|                              |                                                                           |
|------------------------------|---------------------------------------------------------------------------|
| <b>Supervisory Authority</b> | Determined in accordance with Schedule 1, Section 3(d) of this Agreement. |
|------------------------------|---------------------------------------------------------------------------|

## Annex II — Technical and Organizational Security Measures

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The Data Importer maintains the following technical and organizational measures to protect Company Personal Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure or access. Further detail is available in the Data Importer's security documentation on request under section 10 of this Agreement.

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|--------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Access control</b>                      | Role-based, least-privilege access to production systems and Company Personal Data, limited to personnel with a business need; multi-factor authentication for administrative and production access; access is logged and revoked when no longer required. Support access to Company Personal Data from outside the EEA is provided through administrative tooling that masks personal data where technically feasible. |
| <b>Customer-side controls</b>              | The Services offer two-factor authentication, role-based permissions and API token authentication for the Data Exporter's own users.                                                                                                                                                                                                                                                                                    |
| <b>Encryption</b>                          | Data in transit is protected by HTTPS/TLS. Company Personal Data in databases, file storage and backups is encrypted at rest. Passwords are stored hashed; API keys and credentials are stored encrypted.                                                                                                                                                                                                               |
| <b>Network security</b>                    | Production infrastructure runs in private networks with firewall and security-group rules that restrict traffic to authorized protocols and sources.                                                                                                                                                                                                                                                                    |
| <b>Logging and monitoring</b>              | Security logging and monitoring of production infrastructure and applications, with alerting on anomalous or unauthorized activity. Logs are protected by the access controls above.                                                                                                                                                                                                                                    |
| <b>Vulnerability and change management</b> | Vulnerability scanning, periodic third-party penetration testing and remediation of findings according to severity. Changes to production systems go through code review, automated testing and controlled deployment.                                                                                                                                                                                                  |
| <b>Incident response</b>                   | A documented incident response process to identify, contain, remediate and record security incidents. Personal Data Breaches are notified in accordance with section 7 of this Agreement.                                                                                                                                                                                                                               |
| <b>Availability and backup</b>             | Encrypted backups on a regular schedule with documented restore procedures; business continuity and disaster recovery plans; infrastructure designed to avoid single points of failure.                                                                                                                                                                                                                                 |
| <b>Personnel</b>                           | Written confidentiality obligations, security policies and security training for personnel with access to Company Personal Data; background checks where permitted by applicable law and appropriate to the role.                                                                                                                                                                                                       |

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|----------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Subprocessor governance</b>         | Written data protection agreements with, and due diligence appropriate to the services provided before engaging, each Subprocessor (see Annex III).                                                                                                                                                          |
| <b>Data minimization and retention</b> | Company Personal Data is Processed only as necessary to provide the Services and retained in accordance with section 9 of this Agreement. The Data Exporter may delete documents, submissions and user data at any time through the Services or the API.                                                     |
| <b>Hosting and physical security</b>   | Company Personal Data is hosted in data centers located in the European Union (currently Amazon Web Services, Ireland), whose physical and environmental security controls are independently audited against SOC 2 and ISO 27001. The Data Importer's personnel have no physical access to the data centers. |
| <b>Independent assurance</b>           | The Data Importer maintains an information security management system. Its current certifications and third-party audit reports (such as ISO/IEC 27001 and SOC 2) are available to the Data Exporter on request under section 10 of this Agreement, subject to confidentiality.                              |

## Annex III — List of Subprocessors

The Processor maintains the current list of Subprocessors used to provide the Services, including each Subprocessor's name, location and the nature of its processing, on the Subprocessor Page at <https://www.docuseal.com/privacy/gdpr#subprocessors> or a successor location identified by the Processor. The Company should consult the Subprocessor Page for current Subprocessor names, services and location information. The Subprocessor Page, as in effect from time to time, constitutes Annex III (List of Sub-processors) to the SCCs. Changes to the list are notified in accordance with section 5.4; the Subprocessor Page supports transparency but is not the sole notice method for changes.

# Schedule 1 — Standard Contractual Clauses

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*(Module Two: Controller-to-Processor; Module Three: Processor-to-Processor where applicable)*

## 1. Incorporation of SCCs

The Parties agree that the standard contractual clauses set out in Commission Implementing Decision (EU) 2021/914 of June 4, 2021 on standard contractual clauses for the transfer of personal data to third countries pursuant to Regulation (EU) 2016/679 (“SCCs”) are hereby incorporated into this Agreement by reference and shall apply to any Data Transfer from the Company (as Data Exporter) to DocuSeal LLC (as Data Importer).

## 2. Module Selection

The Parties agree that Module Two (Controller-to-Processor) of the SCCs applies to the transfer of Company Personal Data where the Company acts as a controller, and that Module Three (Processor-to-Processor) applies where the Company acts as a processor on behalf of its own customers. The elections set out in section 3 of this Schedule apply equally to the corresponding clauses of Module Three.

## 3. Specific Clause Elections

(a) **Docking Clause (Clause 7):** The optional docking clause is not selected.

(b) **Subprocessors (Clause 9, Option 2 – General Written Authorization):** The Data Importer has the Data Exporter’s general authorization to engage subprocessors as set out in Section 5 of this Agreement and listed in Annex III. The Data Importer shall inform the Data Exporter of any intended changes at least 14 days in advance. Copies of the Data Importer’s agreements with Subprocessors provided under Clause 9(c) may have commercial or unrelated information removed and will be provided on request.

(c) **Redress (Clause 11):** The optional independent dispute resolution mechanism is not selected.

(d) **Supervision (Clause 13):** The competent supervisory authority shall be determined in accordance with Clause 13(a) of the SCCs, namely: (i) where the Data Exporter is established in an EU Member State, the supervisory authority of that Member State; (ii) where the Data Exporter is not established in an EU Member State but has appointed a representative under Article 27 of the GDPR, the supervisory authority of the Member State in which that representative is established; and (iii) where the Data Exporter is not established in an EU Member State, falls within Article 3(2) of the GDPR and is not required to appoint a representative under Article 27(2) of the GDPR, the supervisory authority of one of the Member States in which the Data Subjects whose Personal Data is transferred are located.

(e) **Governing Law (Clause 17):** The Clauses shall be governed by the law of Ireland.

(f) **Choice of Forum and Jurisdiction (Clause 18):** Any dispute arising from these Clauses shall be resolved by the courts of Ireland.

#### **4. Annexes**

- (a) Annex I of this Agreement shall serve as Annex I to the SCCs (Description of the Transfer).
- (b) Annex II of this Agreement shall serve as Annex II to the SCCs (Technical and Organizational Measures).
- (c) Annex III of this Agreement shall serve as Annex III to the SCCs (List of Sub-processors).

#### **5. UK Transfers**

- (a) In respect of any transfer of Company Personal Data subject to UK Data Protection Laws, the SCCs apply as amended and completed by the UK Addendum, which is incorporated into this Agreement by reference.
- (b) As permitted by clause 17 of the UK Addendum, the Parties agree to change the format of the information set out in Part 1 of the UK Addendum as follows: (i) the details of the Parties in Table 1 are as set out in Annex I to this Agreement, with no requirement for signature; (ii) for the purposes of Table 2, the UK Addendum is appended to the SCCs as incorporated by section 1 of this Schedule, with the modules and the elections set out in sections 2 and 3 of this Schedule; (iii) the Appendix Information listed in Table 3 is as set out in Annexes I, II and III to this Agreement; and (iv) for the purposes of Table 4, either Party may end the UK Addendum as set out in Section 19 of the UK Addendum.
- (c) The competent supervisory authority in respect of Company Personal Data subject to UK Data Protection Laws is the UK Information Commissioner's Office.

#### **6. Swiss Transfers**

In respect of any transfer of Company Personal Data subject to the FADP, the SCCs apply with the following adaptations: (i) references to the GDPR are to be understood as references to the FADP; (ii) references to the European Union, EU Member States and Member State are to be understood as references to Switzerland; (iii) the competent supervisory authority under Clause 13 and Annex I.C is the Swiss Federal Data Protection and Information Commissioner in respect of transfers governed by the FADP; and (iv) the term "EU Member State" shall not be interpreted so as to exclude data subjects in Switzerland from the possibility of suing for their rights in their place of habitual residence in accordance with Clause 18(c) of the SCCs.